

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

February 24, 2014

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Brown, and pursuant to support received by Dr. Rinne and Ms. Broyles, Agenda Item #20(c) was removed from the Consent Agenda. Upon request by Dr. Rinne, and pursuant to support received by Ms. Broyles and Mr. Shanor, Agenda Item #23(a) was removed from the Consent Agenda. Ms. Broyles moved to approve remaining Consent Agenda items, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body. Mayor Kaysen advised that Agenda Item #19 (Resolution Adopting Plan Cheyenne: Reflections and Progress) on the Consent Agenda that was referred to Committee of the Whole would be reviewed and discussed at the Committee meeting, open to the public for comments, scheduled to be held Tuesday, March 4, 2014 at 6:00 p.m. in City Council Chambers.

[CA] Minutes from Regular Meeting of the Governing Body on February 10, 2014. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Luna. Upon inquiry regarding a voucher payable to Tatanka Historical Associates Inc., Matt Ashby, Planning Services Director, advised the voucher was for services involving historic structure analysis required by SHPO (State Historic Preservation Office), affiliated with utilization of CDBG (Community Development Block Grant) funding, for the West Edge Project area. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Kaysen opened a Public Hearing to receive comments and input for renewal of existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, and microbrewery permits) filed with the City Clerk's Office. Pursuant to inquiry regarding the police chief's annual report concerning compliance checks involving on-site attempted purchases of alcohol by underage individuals through the Department's compliance program, Detective John Gay, Cheyenne Police Department and Alcohol Compliance Officer, provided information regarding violations relative to certain licensees; warrants and summonses that had been issued for the reporting time frame; summons procedures; how compliance inspections are conducted, and general procedures and assistance to licensees regarding corrective measures. Comments followed regarding TIPS training

and servers being allowed to serve alcohol before they have gone through the training and addressing the issue through state legislation or by City Council review and action. Kevin Beers, Cadillac Ranch Bar owner, reviewed TIPS training time frames for his staff and a reward program he offers to patrons for notification of underage individuals in the bar. Bryan Grzegorzczuk, Alf's Pub and Package Liquor, discussed keeping the community safe and questioned what constitutes a sales "transaction" with regard to attempted alcohol purchases by underage individuals resulting in a written citation being issued. Chief Brian Kozak, Police Department, clarified a violation occurs when the alcohol is delivered or served to the underage individual and timing of the monetary exchange for the sale does not matter. Comments continued on those licensees that had received compliance check violations and procedures before the governing body that are implemented after a third violation within a year. Upon inquiry, Chief Kozak clarified that pursuant to City Code the Chief provides notification to City Council if a third violation occurs, and noted that those licensees who have received two violations as noted in the report will have follow-up compliance checks. Among comments expressed was concern that parents are taking underage children into package stores within the City in violation of City Code. There being no further comments or input and purpose of the public hearing having been met, Mayor Kaysen closed the hearing and referred the applications to Finance Committee. He noted the Committee will meet to review the applications on Monday, March 3, 2014 in Room 122, Municipal Building, at 11:00 a.m.

ORDINANCE - Amending the Cheyenne Unified Development Code (UDC), to adopt amendments to increase the maximum Administrative Adjustment from 10% to 50% for infill and redevelopment as initiated from the 2013 annual review. Albert Simpson expressed his concern with reducing standards and suggested the authority be left to the landowner on what they want to do within the 50% limit. Reporting for Public Services Committee, Mr. Shanor moved to approve on third and final reading, seconded by Ms. Williams. Mr. Shanor, seconded by Ms. Broyles, moved to amend by substitute ordinance by renumbering the current Section 7 to 8, and inserting a new Section 7 with the following language: "In cases where more than 25% of administrative adjustment is exercised, the developer will be required to notify all property owners within 140 feet of the subject area boundaries, excluding rights-of-way." Boyd Wiggam, Wyoming Liberty Group, spoke in opposition to the amendment, commenting on the current process involving sign notification placed on the property, that the amendment potentially promotes neighbor activism, and the need to protect use of property for owners. Jim Weaver, #1 Properties and commercial real estate broker, questioned the intent and purpose of the proposed mailing notice requirement by the developer, and what the next process would be by staff if responses are received as a result of the notice. In response, Brandon Cammarata, Planning and Development Director, expressed that the mailed notice requirement may seem disproportionate to the minor adjustments being attempted to be addressed; that the notice may increase approval times, and that there is nothing specified regarding a staff and/or Council process relative to responses being received as a result of the notices. Jan Nelson-Schroll commented on property and neighborhood aesthetics, and balancing the rights and interests of developing property owners and those of neighboring owners. Comments followed on the intent of the proposed amendment involving mailed notices; provisions of Wyo. Statute Section 15-1-603, and wording contained in UDC Section 2.3.4 b. 3. Upon inquiry, Dan White, City Attorney, advised it was his understanding that the 140 ft. notification referenced in state statute concerns zone changes, and commented that the purpose (i.e. ordinance topic generally) is a less significant change, dealing with an administrative change during a site plan process. Motion to amend by substitute failed.

Voting “yes” -- Ms. Williams. Voting “no” -- Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Mayor Kaysen. Mr. Shanor moved to amend Section 7 by replacing the 12 month time period with 18 months, seconded by Mr. Allen. Explanation followed on extending the ordinance “sunset” time period to allow for coordination with the annual UDC review process with public input. Motion to amend carried. Voting “yes” -- all members of the governing body. Main motion, as amended, carried. Voting “yes” -- all members of the governing body. (#4020)

ORDINANCE - Amending various sections of the Cheyenne Unified Development Code (UDC), to add an Urban Loft Lot Type (NB3) and “Urban Loft Building” definition, allowed as a Use Permitted By Right and Use Permitted after Conditional Discretionary Review in Residential, Mixed Use and Neighborhood Business districts. Albert Simpson expressed objection to the governing body establishing maximum setbacks, noting this should be determined by the property owner, and stated his observation that a parking spot should be required for every bedroom affiliated with a project. Mr. Shanor moved to approve on third and final reading, seconded by Mr. Allen. Mr. Shanor moved to amend Table 5-1 by adding “C”-Use permitted after conditional discretionary review in the CBD column for Urban Loft Building, seconded by Mr. Allen. Motion to amend carried. Voting “yes” -- all members of the governing body. Main motion, as amended, carried. Voting “yes” -- all members of the governing body with the exception of Ms. Williams voting “no”. (#4021)

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from CB Community Business to MUR Mixed-Use Residential Emphasis for the south 79 feet of Lot 8, Block 311, Original City, Cheyenne, Wyoming (located at the northwest corner of the intersection of E. 18th Street and Logan Avenue). Mr. Shanor moved to approve on second reading, seconded by Ms. Williams. Motion carried. Voting “yes” -- all members of the governing body.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from CB Community Business to LI Light Industrial for Lot 1, Block 1, Public Works Addition, Cheyenne, Wyoming (located on the west side of North College Drive). Jean Vetter, High Plains Design, agent for the applicant, provided a brief description of the project and area involved (i.e. Transfer Station), advising the zone change will allow for conformance with use of the property. Ms. Vetter explained the types of hazardous household wastes that will be collected and stored on the property and described generally the City’s current hazardous household waste collection program; benefits of the new facility and services for the public, and project phases and funding. Anthony Reyes, Riske and Salisbury Law Firm, representing David W. Trefren Revocable Trust and Dale D. Trefren Revocable Trust, advised they were opposed to the initial zone change proposed, but since it has been amended to LI they have no objection at this time. Mr. Shanor moved to approve on second reading, seconded by Mr. Allen. Concern was raised regarding comments received by the various reviewing agencies included as part of the staff report. Upon inquiry, Brandon Cammarata, Planning and Development Director, provided information on the zone change process through the Planning Commission, which includes public input, and facility expansion purpose. He explained the difference between the waste transfer station and household

hazardous waste facility and indicated the reason for the initial CB zone classification many years ago was unknown; that the gate on Avenue D would provide access to the facility itself and would not be a public right-of-way access, and that comments by reviewing agencies would be addressed through the site plan review process. Upon query, Craig LaVoy, Public Works Department, advised it is hard to determine how much hazardous household waste is being collected through sanitation pickups and that expansion of services to the public will be an incentive to residents to not include these items in solid waste/regular garbage pickups, which may contaminate landfills. Comment followed on the new facility providing for expanded hours of service to the public to encourage correct disposal of hazardous items. Motion carried. Voting "yes" -- all members of the governing body with the exception of Ms. Williams voting "no".

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne is in support of the application of the Board of County Commissioners of Laramie County, Wyoming, to be submitted to the State Loan and Investment Board for the 2013 - 2014 Countywide Consensus Block Grant funding in the amount of \$31,430.00 for the Laramie County Historic Courthouse roof. Motion (per Consent Agenda) carried. (#5566)

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne is in support of the application of the Town of Pine Bluffs, Wyoming, to be submitted to the State Loan and Investment Board for the 2013 - 2014 Countywide Consensus Block Grant funding in the amount of \$16,500.00 for the Pine Bluffs Airport Fence Thrasher Project. Motion (per Consent Agenda) carried. (#5567)

[CA] RESOLUTION - Declaring as surplus a City-owned property located at 1700 and 1710 Snyder Avenue, legally described as all of Lot 8, Block 348, Original City, together with improvements thereon, Cheyenne, Laramie County, Wyoming, and authorizing the City's Purchasing Director to proceed with the sale of said parcel pursuant to Wyo. Stat. §15-1-112 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Amending the City of Cheyenne and Board of Public Utilities Construction Specifications and Standard Drawings, 2007 Edition -- referred to Public Services Committee (sponsor -- Mr. Shanor).

[CA] RESOLUTION - Authorizing the Governing Body of the City of Cheyenne to adopt the revised Statement of Investment Policy -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Amending Resolution No. 5399 pertaining to adoption of new body art special event license and guest body artist permit fees by Cheyenne-Laramie County Board of Health for various services and inspections -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Authorizing the City of Cheyenne to approve and accept the Wyoming Division of Victim Services Funding Application State Fiscal Year 2015 and 2016, July 1, 2014 to June 30, 2016 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Adopting PlanCheyenne: Reflections and Progress, as the Community Plan for the City of Cheyenne, the Comprehensive Plan for portions of Laramie County, and the Transportation Master Plan for the Cheyenne Urban area -- referred to Committee of the Whole (sponsors -- Mr. Allen, Mr. Brown, Ms. Broyles, Dr. Rinne).

[CA] Contract between the City of Cheyenne and The Hartford for life and supplemental insurance coverage for full-time City employees. Motion (per Consent Agenda) carried. (#6127).

[CA] Agreement between the City of Cheyenne, Parks & Recreation Department, Leisure Services Division, and Kleen-Tech Services, to provide janitorial services for the Youth Activity and Community Center. Motion (per Consent Agenda) carried. (#6128)

Professional Services Agreement between the City of Cheyenne on behalf of the Metropolitan Planning Organization and Fehr & Peers for the Pershing Boulevard Complete Street Plan (Metropolitan Planning Organization Planning Funds). Mr. Brown moved to approve in an amount not to exceed \$39,866.00, seconded by Ms. Broyles. Mr. Brown moved to amend by substitute, seconded by Mr. Allen. Tom Mason, MPO Director, advised the substitute revises paragraph wording at the end of the contract, under Section #40. During comment on past and current upgrades to sections of Pershing Blvd. and timing of the proposed plan, Mr. Allen raised a point of order that comments were not related to the motion to amend on the floor with Mayor Kaysen concurring. Motion to amend carried. Voting “yes” -- all members of the governing body with the exception of Ms. Williams voting “no”. Upon inquiry, Mr. Mason advised this particular project is the result of concerns brought to the governing body by citizens/businesses in the area which resulted in a request to the MPO to look into a plan, noting concerns raised included safety of those crossing the street and traveling along the street. He verified the main Plan focus area, plus extended area, that will be involved, and provided his interpretation of the meaning of a “Complete Street Plan”. Main motion, as amended, carried. Voting “yes” -- all members of the governing body. (#6129)

[CA] Cooperative Agreement between the City of Cheyenne and the Wyoming Department of Transportation for epoxy striping (2011 - 2014 1% Sales Tax). Motion (per Consent Agenda) carried. (#6130)

[CA] Memorandum of Understanding between the City of Cheyenne, Parks & Recreation Administration Department, and Laramie County, Wyoming, to provide funding for the division of responsibilities to complete the Polk Avenue project -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Parks & Recreation Administration Department, and WC Investments, Inc., Cheyenne, Wyoming, to provide funding for the division of responsibilities to complete the Polk Avenue project -- referred to Finance Committee.

[CA] Design-Build Contract between the City of Cheyenne and Alliance Construction Solutions of Wyoming, LLC, for a pedestrian access bridge to connect the Jack R. Spiker Downtown Parking Structure with hotel facilities (Grant, repaid loan money) -- referred to Finance Committee.

Amendment No. 1 to Professional Services Contract No. 5912 between the City of Cheyenne, Metropolitan Planning Organization, and Russell + Mills Studio for the Lincolnway Placemaking: Downtown Pedestrian and Urban Design Plan, Phase II (Metropolitan Planning Organization Planning Funds). Mr. Brown moved to approve in an amount not to exceed \$76,824.00, seconded by Ms. Broyles. Motion carried. Voting “yes” -- all members of the governing body with the exception of Mr. Luna voting “no”. (#5912)

Amendment No. 1 to Professional Services Contract No. 6054 between the City of Cheyenne on behalf of the Metropolitan Planning Organization and AVI Professional Corporation for the

Division Avenue Corridor/Wallick Road Design Plan (Metropolitan Planning Organization Planning Funds). Mr. Brown moved to approve in an amount not to exceed \$9,095.00, seconded by Ms. Broyles. Upon inquiry, Tom Mason, MPO Director, advised the amendment will add additional services to provide for meetings with property owners along the corridor; graphics as a result of those meetings, and surveying of public/private boundaries. He clarified the funding source is MPO planning money. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Luna voting "no". (#6054)

[CA] Contract Modification No. 3 to Contract No. 5181 between the City of Cheyenne, Municipal Court, and New World Systems for software maintenance -- referred to Finance Committee.

[CA] Consideration of Bid #M-13-14 for a contract between the City of Cheyenne, Public Works Department, and Monument Builders, Inc., Cheyenne, Wyoming, for the Household Hazardous Waste Facility, Sitework, and Underground Storage Tank Replacement Project (State & Local Grants). Motion (per Consent Agenda) carried (accept bid in an amount not to exceed \$2,125,260.00). (#6131)

[CA] Consideration of Bid #R-12-14 for furnishing one new mobile command unit for the City of Cheyenne, Police Department (Law Enforcement Grants). Motion (per Consent Agenda) carried (accept bid from Farber Specialty Vehicles, Renoldsburg, OH, in an amount not to exceed \$449,000.00).

[CA] Consideration of Bid #M-10-14 for a contract between the City of Cheyenne, Parks & Recreation Department, and Reiman Corp & Subsidiary of Cheyenne, Wyoming, for the Polk Avenue Greenway Project (State & Local Grants; 1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

Transfer of ownership for a retail liquor license application filed with the City Clerk's Office for Minglemill, Inc. d/b/a Mingles, 1618 Stillwater Avenue, Cheyenne, Wyoming (License currently held by Stillwater, Inc. d/b/a Mingles, 1618 Stillwater Avenue, Cheyenne, Wyoming). Mr. Brown moved to approve, seconded by Mr. Valdez. Upon inquiry, Dan White, City Attorney, and Carol Intlekofer, City Clerk, advised that prior stipulations and restrictions placed last year by the governing body on the current licensee (Stillwater, Inc.) had expired, and did not apply to the new licensee (Minglemill, Inc.). Motion carried. Voting "yes" -- all members of the governing body.

[CA] Consideration to purchase (by contract) EvidenceOnQ for the Cheyenne Police Department from FileOnQ (Impact Assistance funds). Motion (per Consent Agenda) carried (amount not to exceed \$39,995.00). (#6133)

Announcement was made of the Re-Appointment of Tucker Fagan to the City of Cheyenne, Wyoming- Laramie County, State of Wyoming Joint Powers Board for Frontier Park improvements, to be confirmed March 10, 2014.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:25 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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